

Brussels, November 15, 2023 - The European Data Protection Board (EDPB) has adopted Guidelines on the technical scope of Article 5(3) of the e-Privacy Directive. The Guidelines aim to clarify which technical operations, particularly new and emerging tracking techniques, are covered by the Directive, and to provide greater legal certainty to data controllers and individuals.

The Chair of the EDPB, Anu Talus, stated: "It is no secret that tracking users' online activities can seriously undermine people's privacy. Uncertainties regarding the scope of Article 5(3) of the e-Privacy Directive and the emergence of new techniques, additional or as alternatives to traditional cookies, create new privacy risks. These guidelines discuss solutions, such as tracking links and pixels, local processing, and unique identifiers, to ensure that the consent obligations prescribed by the article are not circumvented."

To clarify the scope of the article, the Guidelines analyze key concepts mentioned in this article, such as "information," "terminal equipment of the subscriber or user," "electronic communications network," "gaining access," and "stored information/storage." The Guidelines also include a set of practical cases with common tracking techniques.

The Guidelines exclusively address the scope of application of Article 5(3) of the e-Privacy Directive. They do not consider how consent should be obtained nor the exceptions mentioned in the article.

The Guidelines will be subject to public consultation for a period of 6 weeks.